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whether Congress would have viewed it as successive. *Stewart v. Martinez-Villareal*, 523 U.S. 637, 644 (1998). Here, both historical precedents and statutory aims point in the same direction—toward permitting Rule 59(e) motions in habeas proceedings. And nothing cuts the opposite way.

A

This Court has already held that history supports a habeas court’s consideration of a Rule 59(e) motion. In *Browder v. Director, Dept. of Corrections of Ill.*, 434 U.S. 257 (1978), we addressed prior to AEDPA “the applicability of Federal Rule [59(e)] in habeas corpus proceedings.” *Id.*, at 258. In deciding that the Rule applied in habeas—that “a prompt motion for reconsideration” was “thoroughly consistent” with habeas law and “well suited to the special problems and character of [habeas] proceedings”—we mainly looked to historical practice. *Id.*, at 271 (internal quotation marks omitted). Rule 59(e), we recounted, derived from a court’s common-law power “to alter or amend its own judgments during[] the term of court in which [they were] rendered,” prior to any appeal. *Id.*, at 270; see *Zimmer v. United States*, 298 U.S. 167, 169–170 (1936) (“The judge had plenary power while the term was in existence to modify his judgment [or] revoke it altogether”).⁴ Courts exercised that authority, we explained, “in habeas corpus cases” just as “in other civil proceedings.” *Browder*, 434 U.S., at 270. In 1946, the drafters of the Federal Rules replaced the “term of court” power with Rule 59(e), thus prescribing a set number of days (then 10, now 28) in which a party could move to amend a judgment. See *id.*, at 271. But in our view, that change did nothing to narrow the set of judgments amenable to alteration. See *id.*, at 270–271. After Rule 59(e), just as

⁴ A term of court in those days was simply a period in which a court was open for business. A statute or rule set the date of its commencement, and the court itself determined the date to adjourn. See *United States v. Pitman*, 147 U.S. 669, 670–671 (1893).

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before, a district court could “reconsider the grant or denial of habeas corpus relief” in the same way it could review any other decision. *Id.*, at 270; see *id.*, at 271. A timely Rule 59(e) motion, we held, “suspend[ed] the finality” of any judgment, including one in habeas—thus enabling a district court to address the matter again. *Id.*, at 267 (internal quotation marks omitted).⁵

The record of judicial decisions accords with *Browder*’s view of the use of Rule 59(e) in habeas practice. Before AEDPA, “abuse-of-the-writ principles limit[ed] a [habeas applicant’s] ability to file repetitive petitions.” *McCleskey v. Zant*, 499 U. S. 467, 483 (1991). That doctrine was more forgiving than AEDPA’s gatekeeping provision—for example, enabling courts to hear a second or successive petition if the “ends of justice” warranted doing so. *Id.*, at 485. But the rule against repetitive litigation still had plenty of bite. It demanded the dismissal of successive applications except in “rare case[s].” *Kuhlmann v. Wilson*, 477 U. S. 436, 451 (1986) (plurality opinion). So if courts had viewed Rule 59(e) motions as successive, there should be lots of decisions dismissing them on that basis. But nothing of the kind exists. In the half century from Rule 59(e)’s adoption (1946) through *Browder* (1978) to AEDPA’s enactment (1996), we

⁵The dissent’s attempt to dismiss *Browder* is impossible to square with the opinion. Mostly, the dissent claims that *Browder* is just a case about “time limits.” *Post*, at 530–531 (opinion of ALITO, J.). But *Browder* is about time limits only in the sense that this case is about time limits: There, as here, the timeliness of a motion depended on the broader question whether Rule 59(e) applied in habeas proceedings. See 434 U. S., at 258 (“In order to resolve th[e] question” whether the “appeal was untimely,” “we must consider the applicability of Federal Rule[] 59 in habeas corpus proceedings”). The dissent also intimates that *Browder* was different because there the prison warden rather than the prisoner moved for reconsideration of the habeas ruling. See *post*, at 530–531, and n. 2. But the Court’s decision explicitly addressed “motion[s] to reconsider the grant *or* denial of habeas corpus relief.” 434 U. S., at 270 (emphasis added). In other words, the identity of the movant—whether warden or prisoner—was irrelevant.

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(and the parties) have found only one such dismissal. See *Bannister v. Armontrout*, 4 F. 3d 1434, 1445 (CA8 1993). In every other case, courts resolved Rule 59(e) motions on the merits—and without any comment about repetitive litigation. Mostly, courts denied the motions and adhered to their original judgments. See, e. g., *Gajewski v. Stevens*, 346 F. 2d 1000, 1001 (CA8 1965) (*per curiam*). Occasionally, courts decided they had erred in those decisions. See, e. g., *York v. Tate*, 858 F. 2d 322, 325 (CA6 1988) (*per curiam*). The win-loss rate is for this point irrelevant. What matters is that they all (but one) treated Rule 59(e) motions not as successive, but as attendant on the initial habeas application.

Congress passed AEDPA against this legal backdrop, and did nothing to change it. AEDPA of course made the limits on entertaining second or successive habeas applications more stringent than before. See *supra*, at 509. But the statute did not redefine what qualifies as a successive petition, much less place Rule 59(e) motions in that category. Cf. *Magwood*, 561 U. S., at 336–337 (distinguishing between two questions: “§ 2244(b)’s threshold inquiry into whether an application is ‘second or successive,’ and its subsequent inquiry into whether [to dismiss] a successive application”). When Congress “intends to effect a change” in existing law—in particular, a holding of this Court—it usually provides a clear statement of that objective. *TC Heartland LLC v. Kraft Foods Group Brands LLC*, 581 U. S. 258, 268 (2017). AEDPA offers no such indication that Congress meant to change the historical practice *Browder* endorsed of applying Rule 59(e) in habeas proceedings.

Nor do AEDPA’s purposes demand a change in that tradition. As explained earlier, AEDPA aimed to prevent serial challenges to a judgment of conviction, in the interest of reducing delay, conserving judicial resources, and promoting finality. See *supra*, at 512. Nothing in Rule 59(e)—a rule *Browder* described as itself “based on an interest in speedy disposition and finality,” 434 U. S., at 271 (internal quotation

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marks omitted)—conflicts with those goals. Recall everything said above about the Rule’s operation. See *supra*, at 507–509. To begin with, Rule 59(e) gives a prisoner only a narrow window to ask for relief—28 days, with no extensions. Next, a prisoner may invoke the rule only to request “reconsideration of matters properly encompassed” in the challenged judgment. *White*, 455 U.S., at 451. And “reconsideration” means just that: Courts will not entertain arguments that could have been but were not raised before the just-issued decision. A Rule 59(e) motion is therefore backward-looking; and because that is so, it maintains a prisoner’s incentives to consolidate all of his claims in his initial application. Yet more, the Rule consolidates appellate proceedings. A Rule 59(e) motion briefly suspends finality to enable a district court to fix any mistakes and thereby perfect its judgment before a possible appeal. The motion’s disposition then merges into the final judgment that the prisoner may take to the next level. In that way, the Rule avoids “piecemeal appellate review.” *Osterneck*, 489 U.S., at 177. Its operation, rather than allowing repeated attacks on a decision, helps produce a single final judgment for appeal.

Indeed, the availability of Rule 59(e) may make habeas proceedings more efficient. Most obviously, the Rule enables a district court to reverse a mistaken judgment, and so make an appeal altogether unnecessary. See *United States v. Ibarra*, 502 U.S. 1, 5 (1991) (*per curiam*) (noting that giving district courts a short time to correct their own errors “prevents unnecessary burdens being placed on the courts of appeals”). Of course, Rule 59(e) motions seldom change judicial outcomes. But even when they do not, they give habeas courts the chance to clarify their reasoning or address arguments (often made in less-than-limpid *pro se* petitions) passed over or misunderstood before. See Brief for National Association of Criminal Defense Lawyers as *Amicus Curiae* 12–20 (describing examples). That opportunity, too, promotes an economic and effective appellate process, as the

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reviewing court gets “the benefit of the district court’s plenary findings.” *Osterneck*, 489 U. S., at 177. And when a district court sees no need to change a decision, the costs of permitting a Rule 59(e) motion are typically slight. A judge familiar with a habeas applicant’s claims can usually make quick work of a meritless motion. This case may well provide an example: The District Court declined to make the State respond to Banister’s motion and decided it within five days. Nothing in such a process conflicts with AEDPA’s goal of streamlining habeas cases.

The upshot, after AEDPA as before, is that Rule 59(e) motions are not second or successive petitions, but instead a part of a prisoner’s first habeas proceeding. In timing and substance, a Rule 59(e) motion hews closely to the initial application; and the habeas court’s disposition of the former fuses with its decision on the latter. Such a motion does not enable a prisoner to abuse the habeas process by stringing out his claims over the years. It instead gives the court a brief chance to fix mistakes before its (single) judgment on a (single) habeas application becomes final and thereby triggers the time for appeal. No surprise, then, that habeas courts historically entertained Rule 59(e) motions, rather than dismiss them as successive. Or that Congress said not a word about changing that familiar practice even when enacting other habeas restrictions.

B

Texas (along with the dissent) resists this conclusion on one main ground: this Court’s prior decision in *Gonzalez v. Crosby*, 545 U. S. 524 (2005). The question there was whether a Rule 60(b) motion for “relie[f] from a final judgment” denying habeas relief counts as a second or successive habeas application. Fed. Rule Civ. Proc. 60(b).⁶ We said

⁶ Under Rule 60(b), a court may relieve a party in civil litigation from a final judgment if the party can show (1) mistake, inadvertence, surprise, or excusable neglect; (2) certain newly discovered evidence; (3) fraud, mis-

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that it does, so long as the motion “attacks the federal court’s previous resolution of a claim on the merits.” 545 U. S., at 532 (emphasis deleted).⁷ Texas thinks the “*Gonzalez* principle applies with equal force to Rule 59(e) motions.” Brief for Respondent 8. After all, the State argues, both Rule 59(e) and Rule 60(b) provide “vehicles for asserting habeas claims” after a district court has entered judgment denying relief. *Id.*, at 2. And if *Gonzalez* does apply, Texas concludes, Banister must lose because (as everyone agrees) his Rule 59(e) motion pressed only merits-based claims.

But Rule 60(b) differs from Rule 59(e) in just about every way that matters to the inquiry here. (Contra the dissent’s refrain, see *post*, at 522, 524, 526, 531, 534, the variance goes far beyond their “labels.”) Begin, again, with history. Recall that Rule 59(e) derives from a common-law court’s plenary power to revise its judgment during a single term of court, before anyone could appeal. See *supra*, at 513–514. By contrast, Rule 60(b) codifies various writs used to seek relief from a judgment at any time after the term’s expiration—even after an appeal had (long since) concluded. Those mechanisms did not (as the term rule did) aid the trial court to get its decision right in the first instance; rather, they served to collaterally attack its already completed

representation, or misconduct by an opposing party; (4) voidness of the judgment; (5) certain events that would cast doubt on the validity or equity of continuing to apply the judgment; or (6) “any other reason that justifies relief.” Fed. Rule Civ. Proc. 60(b)(1)–(6).

⁷By contrast, *Gonzalez* held, a Rule 60(b) motion that attacks “some defect in the integrity of the federal habeas proceedings”—like the mistaken application of a statute of limitations—does not count as a habeas petition at all, and so can proceed. 545 U. S., at 532. Texas concedes that if *Gonzalez* controls Rule 59(e) motions, that decision’s distinction between merits-based motions and integrity-based motions would have to apply. See Brief for Respondent 37. The need for a habeas court to make that not-always-easy threshold determination further undermines the notion—already on shaky ground, see *supra*, at 515–516—that Texas’s position would lead to any efficiency gains.

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judgment. See Advisory Committee’s 1946 Notes on Amendments to Fed. Rule Civ. Proc. 60; Mann, Note, History and Interpretation of Federal Rule 60(b), 25 Temp. L. Q. 77, 78 (1951). And that distinction was not lost on pre-AEDPA habeas courts applying the two Rules. As discussed earlier, it is practically impossible to find a case dismissing a Rule 59(e) motion for raising repetitive claims. See *supra*, at 514–515. But decisions abound dismissing Rule 60(b) motions for that reason. See, e.g., *Williamson v. Rison*, 1993 WL 262632 (CA9, July 9, 1993); see also *Brewer v. Ward*, 1996 WL 194830, *1 (CA10, Apr. 22, 1996) (collecting cases from multiple Circuits). That is because those courts recognized Rule 60(b)—as contrasted to Rule 59(e)—as threatening an already final judgment with successive litigation.⁸

The modern-day operations of the two Rules also diverge, with only Rule 60(b) undermining AEDPA’s scheme to prevent delay and protect finality. Unlike Rule 59(e) motions with their fixed 28-day window, Rule 60(b) motions can arise long after the denial of a prisoner’s initial petition—depending on the reason given for relief, within either a year or a more open-ended “reasonable time.” Fed. Rule Civ. Proc. 60(c)(1). In *Gonzalez* itself, the prisoner made his motion nearly three years after the habeas court’s denial of relief,

⁸The dissent’s alternative explanation for this disparity does not pass muster. According to the dissent, habeas courts “might have been more inclined” to rule on the merits of Rule 59(e) motions because doing so was easier: after all, they (but not Rule 60(b) motions) always challenge a just-issued decision. *Post*, at 532. But another course would have been easier still: throwing out the motion for raising repetitive claims. And even more to the point, that course would usually have been required if the dissent were right that Rule 59(e) motions counted as successive. Although pre-AEDPA courts had some discretion around the edges, the consideration of successive petitions was supposed to be “rare.” *Kuhlmann v. Wilson*, 477 U. S. 436, 451 (1986) (plurality opinion); see *supra*, at 514. It is a “tall order,” *post*, at 533, then, to think that a half century’s worth of habeas courts would have resolved Rule 59(e) motions on the merits if they thought of those motions as successive. The only plausible account of their actions is that they did not.

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and more than one year after his appeal ended. See 545 U. S., at 527. Given that extended timespan, Rule 60(b) inevitably elicits motions that go beyond Rule 59(e)'s mission of pointing out the alleged errors in the habeas court's decision. See, e. g., *Lopez v. Douglas*, 141 F. 3d 974, 975 (CA10 1998) (*per curiam*) (seeking relief in light of a Supreme Court decision issued a decade after judgment); *Tyler v. Anderson*, 749 F. 3d 499, 504–505 (CA6 2014) (seeking to raise claims that former counsel had neglected in a years-old habeas application). Still more, the appeal of a Rule 60(b) denial is independent of the appeal of the original petition. Recall that a Rule 59(e) motion suspends the finality of the habeas judgment, and a decision on the former merges into the latter for appellate review. See *supra*, at 508–509, 515–516. By contrast, a Rule 60(b) motion “does not affect the [original] judgment’s finality or suspend its operation.” Fed. Rule Civ. Proc. 60(c)(2). And an appeal from the denial of Rule 60(b) relief “does not bring up the underlying judgment for review.” *Browder*, 434 U. S., at 263, n. 7. Instead, that denial is appealed as “a separate final order.” *Stone v. INS*, 514 U. S. 386, 401 (1995).⁹

In short, a Rule 60(b) motion differs from a Rule 59(e) motion in its remove from the initial habeas proceeding. A Rule 60(b) motion—often distant in time and scope and always giving rise to a separate appeal—attacks an already

⁹Texas objects that if a Rule 60(b) motion is filed within 28 days, it too suspends the finality of the underlying judgment so that the denial of the motion merges with that judgment on appeal. See Brief for Respondent 25, 28. But that is only because courts of appeals have long treated Rule 60(b) motions filed within 28 days as . . . Rule 59(e) motions. See, e. g., *Skagerberg v. Oklahoma*, 797 F. 2d 881, 882–883 (CA10 1986) (*per curiam*) (“[A] post-judgment motion made within [28] days of the entry of judgment that questions the correctness of a judgment,” however denominated, “is properly construed as a motion to alter or amend judgment under [Rule] 59(e)”; see also Fed. Rule App. Proc. 4(a)(4)(A)(vi) (codifying that approach by setting the same appeals clock for self-styled Rule 60(b) motions filed within 28 days as for Rule 59(e) motions).

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completed judgment. Its availability threatens serial habeas litigation; indeed, without rules suppressing abuse, a prisoner could bring such a motion endlessly. By contrast, a Rule 59(e) motion is a one-time effort to bring alleged errors in a just-issued decision to a habeas court's attention, before taking a single appeal. It is a limited continuation of the original proceeding—indeed, a part of producing the final judgment granting or denying habeas relief. For those reasons, *Gonzalez* does not govern here. A Rule 59(e) motion, unlike a Rule 60(b) motion, does not count as a second or successive habeas application.

III

Our holding means that the Court of Appeals should not have dismissed Banister's appeal as untimely. Banister properly brought a Rule 59(e) motion in the District Court. As noted earlier, the 30-day appeals clock runs from the disposition of such a motion, rather than from the initial entry of judgment. See *supra*, at 508. And Banister filed his notice of appeal within that time. The Fifth Circuit reached a contrary conclusion because it thought that Banister's motion was really a second or successive habeas application, and so did not reset the appeals clock. For all the reasons we have given, that understanding of a Rule 59(e) motion is wrong. We therefore reverse the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE ALITO, with whom JUSTICE THOMAS joins, dissenting.

Gregory Banister, a state prisoner, filed a federal habeas petition arguing that his conviction was invalid for 53 reasons. His arguments spanned almost 300 pages and featured an imagined retelling of the jury deliberations in the form of stage dialogue. After the District Court deter-

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mined that all his claims lacked merit, he filed a motion rearguing many of them.

If Banister had labeled this motion what it was in substance—another habeas petition—it would have been summarily dismissed under 28 U. S. C. § 2244(b)(1). If he had labeled it a motion for relief from judgment under Federal Rule of Civil Procedure 60(b), it would also have been subject to dismissal under our decision in *Gonzalez v. Crosby*, 545 U. S. 524 (2005). Instead, he gave it a different label, styling it as a motion to alter the judgment under Rule 59(e), and the Court now holds this label makes all the difference.

The question in this case is whether a state prisoner can evade the federal habeas statute's restrictions on second or successive habeas petitions by affixing a Rule 59(e) label. The answer follows from our decision in *Gonzalez*, and the answer is no. If a Rule 59(e) motion asserts a habeas claim, the motion functions as a second or successive habeas petition and should be treated as such.

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I

The Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA) “streamlin[es] federal habeas corpus proceedings.” *Rhines v. Weber*, 544 U. S. 269, 277 (2005). A state prisoner is generally limited to a single federal habeas petition, which usually must be filed within one year after the end of direct review; the district court must give this petition “priority”; if the prisoner is dissatisfied with the district court’s decision and wants to appeal, he must seek permission from the appropriate court of appeals and must set out the errors he thinks the district court made; and the appeal can go forward only if a specified standard is met. §§ 2244(d), 2253(c), 2254(a), 2266(a). As we have frequently said, this design was crafted to promote comity, finality, federalism, and judicial efficiency. See, e. g., *Panetti v. Quarterman*, 551 U. S. 930, 945 (2007).

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Habeas petitions occupy an outsized place on federal dockets. See *infra*, at 533–534. Their efficient resolution not only preserves federal judicial capacity but removes the cloud of federal review from state-court judgments. The federal habeas provisions create a procedural regime that differs sharply from the regime that generally applies in civil cases, and the habeas statute displaces any Federal Rule of Civil Procedure that is “inconsistent with” its provisions. 28 U. S. C. § 2254 Rule 12 (Habeas Rule 12).

Integral to AEDPA’s design are its restrictions on “second or successive” habeas petitions, which, prior to AEDPA, sometimes led to very lengthy delays. See, e. g., *Kuhlmann v. Wilson*, 477 U. S. 436, 453, and n. 15 (1986) (plurality opinion). A provision added by AEDPA, 28 U. S. C. § 2244(b), is designed to prevent this. Under § 2244(b)(1), a second or successive petition may not duplicate the initial petition. Thus, any claim “that was presented in a prior application shall be dismissed.” § 2244(b)(1). In addition, second or successive petitions usually may not raise new claims either. Any claim “that was not presented in a prior application shall be dismissed unless” it meets stringent standards contained in § 2244(b)(2). Specifically, to avoid dismissal, a new claim must rely on (1) “a new rule of constitutional law” that this Court has made applicable in habeas proceedings or (2) a fact that “could not have been discovered previously through the exercise of due diligence” and that now makes the petitioner’s innocence “clear and convincing.” §§ 2244(b)(2)(A)–(B).

A prisoner wishing to file a second or successive petition must apply to a court of appeals for permission to do so, and the court of appeals cannot authorize the filing unless the petition makes a *prima facie* showing that it meets § 2244(b)(2)’s standards. § 2244(b)(3). If a court of appeals allows the second or successive petition to be filed, the district court must nevertheless review its claims and dismiss

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any that turns out not to meet § 2244(b)(2)'s standards. § 2244(b)(4).

II

In *Gonzalez*, we considered how § 2244(b) applies to a filing that is in essence a second or successive habeas petition but bears a different label. The filing there was a motion under Rule 60(b), which allows a court to relieve a party of an earlier judgment. Every Member of the *Gonzalez* Court, including those in dissent, recognized that whether a Rule 60(b) motion should be treated as a habeas petition depends on the nature of the relief the motion seeks, not the label slapped onto it. 545 U. S., at 532 (opinion of the Court); *id.*, at 538 (BREYER, J., concurring); *id.*, at 539 (Stevens, J., dissenting). And in considering whether a Rule 60(b) motion asserts the type of relief that requires it to be treated as a habeas petition, the critical question is whether the motion in essence asserts a habeas claim, that is, a claim that propounds a “federal basis for relief from a state court’s judgment of conviction.” *Id.*, at 530 (opinion of the Court). If the motion “seeks to add a new ground for” that relief, it “will of course qualify” as a second or successive habeas petition. *Id.*, at 532. It will also qualify “if it attacks the federal court’s previous resolution of a [habeas] claim *on the merits*.” *Ibid.*

To see how this analysis plays out, imagine a case in which a state prisoner files a Rule 60(b) motion alleging that he was denied the effective assistance of counsel at trial. If that claim was not in his initial habeas petition, the motion constitutes a second or successive habeas petition because it asserts a new reason why he is entitled to habeas relief. And if that claim was in his initial habeas petition but he now alleges that the court erroneously denied the claim, the motion is still a second or successive habeas petition since it alleges that the court should have granted him habeas relief, an argument that is “effectively indistinguishable” from the claim that he was entitled to that relief in the first place.

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Ibid. In either event, we held in *Gonzalez*, “failing to subject” the motion to §2244(b) “would be inconsistent with” AEDPA. *Id.*, at 531 (internal quotation marks omitted).

Although *Gonzalez* concerned a motion under Rule 60(b), nothing in its reasoning was tied to any specific characteristics of such a motion, and accordingly, there is no good reason why a Rule 59(e) motion should not be subject to the same rules. Indeed, the application of *Gonzalez*’s reasoning is even more clear-cut when a habeas petitioner files a Rule 59(e) motion. Like its neighbor, Rule 59(e) provides a way for a civil litigant to get relief after the entry of judgment, but a Rule 59(e) motion can seek only “reconsideration of matters properly encompassed in a decision on the merits.” *White v. New Hampshire Dept. of Employment Security*, 455 U. S. 445, 451 (1982); accord, *ante*, at 516. And a claim that “attacks the federal court’s previous resolution of a claim *on the merits*” is exactly the type of claim that, under *Gonzalez*, is subject to §2244(b)(1) and must therefore be dismissed. 545 U. S., at 532.¹

Today’s opinion thus permits precisely the type of circumvention that *Gonzalez* prevents. Consider again the habeas petitioner with the allegedly bad trial lawyer. Suppose that, after the district court denies an ineffective-assistance claim in his initial petition, he submits three effectively indistinguishable filings under different headers: a second habeas petition asserting the same claim again; a Rule 60(b) motion disputing the court’s resolution of the claim; and a Rule 59(e) motion doing the same. The first two will face dismissal under §2244(b)(1). But, under today’s decision, the third may proceed. And not only that, if a *pro se* litigant does not

¹ Rule 59(e) motions can also assert “newly discovered or previously unavailable evidence” and “intervening change[s] in controlling law.” 11 C. Wright, A. Miller, & M. Kane, *Federal Practice and Procedure* §2810.1 (3d ed. Supp. 2020). Banister’s motion did neither, see Brief for Petitioner 47, so this case concerns only the types of claims that require automatic dismissal under 28 U. S. C. §2244(b)(1).

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appreciate that he can get around § 2244(b)(1) by calling his second or successive petition a Rule 59(e) motion, a court may “ignore the legal label that [the] *pro se* litigant attaches to” his filing, treat the petition as a Rule 59(e) motion, and voilà, § 2244(b) disappears from view. *Castro v. United States*, 540 U. S. 375, 381 (2003). This allows a habeas petitioner to obtain “a second chance to have the merits determined favorably” in contravention of AEDPA and our reasoning in *Gonzalez*, 545 U. S., at 533, n. 5.

III

The Court provides a variety of reasons for refusing to follow *Gonzalez*, but none is sound.

A

The Court begins by saying that a Rule 59(e) motion is part of a petitioner’s “one fair opportunity to seek federal habeas relief,” *ante*, at 507, but if there is a reason why a Rule 60(b) motion could not also be called part of that “opportunity,” the Court does not offer one. A repetitive habeas claim is as much a repetitive habeas claim if filed under Rule 59(e) in 28 days or under Rule 60(b) at, say, day 29. The label is the only “variance” that explains why one is now allowed but not the other. *Ante*, at 518.

B

The Court proclaims that Rules 59(e) and 60(b) differ “in just about every way that matters to the inquiry here,” *ibid.*, but none of the differences that the Court cites matters under *Gonzalez*’s reasoning, which relies on the nature of the claim asserted in the post-judgment motion. Under that reasoning, it makes no difference that a Rule 60(b) motion may be filed later than a Rule 59(e) motion, that a Rule 59(e) motion (but not a later-filed Rule 60(b) motion) suspends a judgment’s finality for purposes of appeal, or that an order denying a Rule 59(e) motion merges with the judgment for

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purposes of appeal, whereas a Rule 60(b) denial is separately appealable. *Ante*, at 519–520. *Gonzalez* did not rely on a single one of the Rule 60(b) characteristics mentioned by the Court here, and none matters under *Gonzalez*’s reasoning. On the contrary, *Gonzalez*’s logic was simple: If a motion advances a habeas claim, it counts as a habeas petition.

C

The Court looks to the history of motions to alter or amend a judgment, see *ante*, at 513–514, but it is hard to see how that history has a bearing on the issue in this case. As the Court notes, trial courts once had the power to correct errors in their judgments during but not after the term in which the judgment was handed down, but how this is relevant to our issue is a mystery. The point in time at which a court’s power to alter or amend a judgment ends (whether at the conclusion of a court term or at a specified point after the entry of the judgment) is used to determine whether a motion to alter or amend is timely. But the issue before us is not whether Banister filed his Rule 59(e) motion within the time allowed for such motions (he did) but whether his motion counts as a habeas petition. The question would be exactly the same if district courts still had terms of court and his motion was filed before the term ended.

D

In arguing that “[t]his case requires us to choose between” § 2244(b) and Rule 59(e), *ante*, at 511, the Court invokes Habeas Rule 12, which states that “[t]he Federal Rules of Civil Procedure, to the extent that they are not inconsistent with any statutory provisions or these rules, may be applied to a proceeding under these rules.” According to the Court, AEDPA does not “place Rule 59(e) motions in th[e] category” of second or successive petitions, and therefore AEDPA does not alter Rule 59(e)’s role. *Ante*, at 515.

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This argument greatly exaggerates the very limited role of Habeas Rule 12. Although “habeas corpus proceedings are characterized as ‘civil,’” “the label is gross and inexact.” *Harris v. Nelson*, 394 U.S. 286, 293–294 (1969). They are “unique,” and even before AEDPA they “conformed with civil practice only in a general sense.” *Id.*, at 294. Thus, we have contrasted a “civil action, governed by the full panoply of the Federal Rules of Civil Procedure,” with the “swift, flexible, and summary determination” of a habeas claim. *Preiser v. Rodriguez*, 411 U.S. 475, 495–496 (1973). The Civil Rules themselves give AEDPA precedence. They “apply to proceedings for habeas corpus” only insofar as “the practice in those proceedings . . . is not specified in a federal statute” or the Habeas Rules and “has previously conformed to the practice in civil actions.” Fed. Rule Civ. Proc. 81(a)(4). And as we have observed, “[s]uch specific evidence as there is with respect to the intent of the draftsmen of the [civil] rules indicates nothing more than a general and nonspecific understanding that the rules would have very limited application to habeas corpus proceedings.” *Harris*, 394 U.S., at 295.

Let’s count some of the ways in which habeas proceedings deviate from the Civil Rules. Discovery rules, which are central to civil litigation, do not apply “as a matter of right” in habeas proceedings. *Ibid.* Instead, a court’s leave is required for factual development. See Habeas Rule 6(a); see also *Bracy v. Gramley*, 520 U.S. 899, 908–909 (1997). Another civil mainstay, the Rule 12(b)(6) motion to dismiss, also has no place in habeas. See *Browder v. Director, Dept. of Corrections of Ill.*, 434 U.S. 257, 269, n. 14 (1978); see also Habeas Rule 4 (responsive pleading not required unless the court directs). Indeed, the entire “civil action procedural sequencing—from a motion to dismiss, to an answer, to discovery, and ultimately to trial—[i]s not applicable in habeas cases.” *O’Brien v. Moore*, 395 F.3d 499, 506 (CA4 2005) (discussing *Browder*, 434 U.S., at 269, n. 14). Even nation-

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wide service of process authorized by statute, rather than the Civil Rules, is unavailable in habeas. See *Schlanger v. Seamans*, 401 U.S. 487, 489–491, and n. 4 (1971). And though courts have long applied “noncontroversial rules in habeas corpus proceedings,” *Harris*, 394 U.S., at 294, n. 5, the mixed bag shows habeas’s hybrid nature. See 4 C. Wright, A. Miller, & A. Steinman, *Federal Practice and Procedure* §1021, n. 6 (4th ed. Supp. 2020) (Wright & Miller) (cataloging other rules that courts have and have not applied).

Our decisions rejecting some of the Civil Rules’ procedural “formalisms” have often inured to the benefit of habeas petitioners. *Hensley v. Municipal Court, San Jose-Milpitas Judicial Dist., Santa Clara Cty.*, 411 U.S. 345, 350 (1973). In *O’Neal v. McAninch*, 513 U.S. 432 (1995), we rejected a State’s argument that Rule 61 put the burden on habeas petitioners to resolve doubts about whether trial errors were harmless, and we reached that conclusion primarily because habeas proceedings are “[u]nlike the civil cases cited by the State.” *Id.*, at 440. In *Holiday v. Johnston*, 313 U.S. 342 (1941), the petitioner sought habeas relief from a district court but received a hearing before an Alcatraz commissioner. We held that Rule 53, which allows a court to send some issues to a “master,” did not justify that practice in habeas cases; the federal habeas statute contemplated proceedings before judges, giving Rule 53 “no application.” *Id.*, at 353. In so holding, we rejected the argument that the practice at issue was permissible because it was “a convenient one,” *id.*, at 352, the same claim that the Court makes about Rule 59(e), *ante*, at 516–517. Instead, we held that a court “may not substitute another more convenient mode” from civil practice if it contravenes “the Congressional policy” reflected “in the Habeas Corpus Act.” *Holiday*, 313 U.S., at 352.

AEDPA has only widened the gap between habeas and other civil proceedings, see *Felker v. Turpin*, 518 U.S. 651,

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664 (1996), and *Gonzalez* illustrates the point. Like Rule 59(e) and the other Rules just discussed, no federal habeas provision “expressly circumscribe[s]” the application of Rule 60(b) in habeas cases. 545 U. S., at 529. And like Rule 59(e) but unlike the discovery rules, which were “innovations,” *Hickman v. Taylor*, 329 U. S. 495, 500 (1947), Rule 60(b) descends from “ancient” civil practice, 11 Wright & Miller § 2851. But AEDPA so “dramatically” reshaped federal habeas procedure, *Rhines*, 544 U. S., at 274, that courts must proceed “in a manner consistent with the objects of the statute” even where it does not address a given detail, *Calderon v. Thompson*, 523 U. S. 538, 554 (1998). Where a Civil Rule does conflict with a specific AEDPA provision like § 2244(b), AEDPA necessarily prevails.

On its own, then, Habeas Rule 12 cannot do the work that Banister needs. He must show that AEDPA itself contains the loophole he seeks to exploit, and he has not done so. The refrain echoed by the Court—that a Rule 59(e) motion comes included with a petitioner’s “one full and fair opportunity” for habeas relief, Brief for Petitioner 1; see *ante*, at 507—simply begs the question that AEDPA answers: namely, what that opportunity entails. It does not entail “a second chance to have the merits” of a habeas claim “determined favorably.” *Gonzalez*, 545 U. S., at 533, n. 5.

Lifting partial quotations from our decision in *Browder*, 434 U. S., at 271, the Court states that we have “already held” that Rule 59(e) is “‘thoroughly consistent’ with habeas law,” *ante*, at 513, but the partial quotations are highly misleading. The case had nothing to do with the interplay between Rule 59(e) and restrictions on filing a second or successive habeas petition.

In *Browder*, a prison warden moved for reconsideration of a judgment granting habeas relief, but he did not do so within the time allowed by Rule 59 and Rule 52(b), which sets the same deadline for a motion to amend factual findings. All that the Court held was that those “time limits”

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were “thoroughly consistent with the spirit of the habeas corpus statutes,” which did not address the “timeliness” of such a motion. 434 U. S., at 270–271.

Browder in no way establishes that it is “thoroughly consistent with” AEDPA to allow a petitioner to accomplish via a Rule 59(e) motion what the prisoner could not achieve by honestly labeling his motion as a habeas petition.² The warden, of course, was not seeking habeas relief, so his Rule 59(e) motion could not have constituted a successive habeas petition.

E

This brings us to the Court’s final redoubt, pre-AEDPA practice. We have sometimes looked there in interpreting AEDPA’s terms. See *Slack v. McDaniel*, 529 U. S. 473, 486 (2000). But assuming pre-AEDPA practice can inform our understanding of AEDPA, history lends no real support to the Court’s holding that a Rule 59(e) motion cannot count as a second or successive habeas petition. Research has found exactly one decision that directly addresses that question, and its holding is contrary to the Court’s position.

In *Bannister v. Armontrout*, 4 F. 3d 1434 (CA8 1993), after the District Court denied a habeas petition, the prisoner filed a Rule 59(e) motion asserting a new claim. The Eighth Circuit held that this motion “was the functional equivalent of a second petition” and rejected it on that ground. *Id.*, at 1445. The Court does not attempt to distinguish that case, and cannot cite a single pre-AEDPA case that directly substantiates its claim about pre-AEDPA practice.

Without any direct support, the Court reads volumes into what it sees as the disparate treatment of habeas petitioners’

² *Browder* cites two cases for the proposition that courts had power to alter their judgments “in habeas corpus cases.” 434 U. S., at 270. Neither did so at the habeas petitioner’s request. See *Aderhold v. Murphy*, 103 F. 2d 492, 493 (CA10 1939) (*sua sponte* alteration deemed void on appeal); *Tiberg v. Warren*, 192 F. 458, 462 (CA9 1911) (government motion).

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Rule 60(b) and 59(e) motions in pre-AEDPA days. Pre-AEDPA courts often, though not always, treated prisoners' Rule 60(b) motions as successive habeas petitions. See *Brewer v. Ward*, 1996 WL 194830, *1 (CA10, Apr. 22, 1996) (noting the trend as to motions "raising new claims" but affirming a denial of Rule 60(b) relief on the merits). By contrast, only *Bannister* denied a Rule 59(e) motion on that basis, and a handful of cases denied (or reversed lower-court decisions granting) habeas petitioners' Rule 59(e) motions on other grounds. *Ante*, at 514–515. From this state of affairs, the Court infers that Rule 59(e) motions were generally regarded as free from the pre-AEDPA strictures on second or successive petitions. In other words, the Court infers that judges thought that they were required to decide Rule 59(e) motions on the merits even if they were second or successive habeas petitions in substance.

This is nothing but speculation, and there is a more likely explanation for the disparity between reported cases dismissing Rule 60(b) and Rule 59(e) motions as second or successive. Before AEDPA, whether to entertain a successive habeas petition was left to "the sound discretion of the federal trial judges," *Sanders v. United States*, 373 U. S. 1, 18 (1963), and therefore the disparity may be attributable, not to what judges thought they were required to do, but to what they chose to do as a matter of discretion. And the Court provides the obvious reasons why judges might have been more inclined to reach the merits in Rule 59(e) cases. A Rule 59(e) motion raises claims that the judge recently decided; a Rule 60(b) motion may raise entirely new claims and may be filed later. For these reasons, judges might have found it more attractive to decide the merits in Rule 59(e) cases when they had the discretion to do so.

The important point, however, is that the Court can only speculate. But based on that speculation, the Court is willing to conclude that in the days before AEDPA, judges thought that they were legally required to decide the merits